

Tentative Rulings for August 25, 2026 Department 3

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 3 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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- Meeting Number: **161 692 7358**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2501734	HOWARD-CO vs CITY OF JURUPA VALLEY	MOTION FOR AN ORDER THAT PLAINTIFF FILE AN UNDERTAKING TO SECURE AN AWARD OF COSTS & FEES

Tentative Ruling:

Factual/Procedural Context

Complaint (FAC) & Allegations. This is a personal injury litigation initiated by Plaintiff Alyssa Howard-Co on April 1, 2025 against the City of Jurupa Valley (“City”), County of Riverside (“County”), Corona-Norco Family YMCA (“CNYMCA”) and YMCA Youth Center at Jurupa Valley (“YMCAJV”). Plaintiff alleges that on April 11, 2024, she was seriously injured while outside of her kids’ school in Jurupa Valley (“Premises”). Defendants negligently owned, controlled, and operated the Premises, allowed such dangerous condition of public property to exist, and caused Plaintiff’s damages. The Complaint asserts causes of action for (1) General Negligence and (2) Premises Liability.

On November 5, 2025, CNYMCA filed a Cross-Complaint against Roes 1-50 for (1) Equitable Indemnity, (2) Declaratory Relief, (3) Contribution, (4) Express Indemnity. On March 16, 2026, CNYMCA amended the Cross Complaint designating Roe 1 as Green R. Turf, Inc. (“Green”).

On June 5, 2026, Green filed a Cross-Complaint against CNYMCA and New Generation Turf, Inc. for (1) Declaratory Relief, (2) Apportionment, and (3) Implied Indemnity.

Trial is not currently set.

Motion. CNYMCA (“Defendant”) now moves in accordance for an order requiring Plaintiff to post an undertaking in the amount of \$54,000 because Plaintiff is an Arizona resident and Defendant has a reasonable possibility of prevailing at trial. Defendant argues it has a complete defense because Plaintiff signed a Release Waiver for any claims for injuries as a result of general negligence when she enrolled in the YMCA childcare development program. (Bonkowski Decl., Exh. C, “Release”).

In opposition, Plaintiff argues Defendant has made no evidentiary showing of a reasonable probability of prevailing, instead relying on conclusory allegations. Plaintiff contends Defendant fails to provide the basis for the \$54,000 amount requested.

In reply, Defendant points out Plaintiff does not refute the fact that she resides outside of California and does not question the authenticity or foundation of the Release.

Analysis

I. Standard

Code of Civil Procedure section 1030 allows a defendant to, at any time, apply to the court by noticed motion for an order requiring the plaintiff to file an undertaking if the plaintiff resides out of the state. The undertaking would secure an award of costs and attorney's fees that might be awarded in the action. (Code Civ. Proc., § 1030, subd. (a); see also *Shannon v. Sims Service Center, Inc.* (1985) 164 Cal.App.3d 907, 914 [constitutionally upheld].) The motion is made on the grounds that the plaintiff resides out of the state and that there is a reasonable possibility that the moving defendant will obtain judgment. (Code Civ. Proc., § 1030, subd. (b).) The statute serves a legitimate purpose of securing costs in the face of the difficulty of trying to enforce a costs judgment against a nonresident. (*Shannon, supra*, 164 Cal.App.3d at 913.) To obtain an order requiring such a bond, the defendant must show by affidavit or declaration a "reasonable possibility" that it will prevail at trial, and a detailed estimate of the costs it is likely to incur. (Code Civ. Proc., § 1030, subd. (b).)

II. Merits

a. Prong 1 – Does Plaintiff reside out of state?

Plaintiff fails to address this point in opposition. The failure to respond to a point is "equivalent to a concession." (*Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16.) Thus, Defendant's assertion that Plaintiff resides in Arizona is undisputed.

b. Prong 2 – Is there a reasonable possibility that the moving defendant will obtain judgment?

The moving defendant is not required to show that there is no possibility that plaintiff can prevail at trial, only that it is reasonably possible that it will win. (*Baltayan v. Estate of Getemyan* (2001) 90 Cal.App.4th 1427, 1432.) In *Baltayan*, the defendant collided into the plaintiff's car. (*Id.* at 1430.) After the collision, the plaintiff told the police he pulled over to the curb, saw a no parking sign, pulled out and was suddenly hit by the defendant. (*Id.* at 1430-1431.) The arbitrator found the accident was caused by plaintiff's unsafe turning maneuver into the path of defendant's car. (*Id.* at 1431.) Though the plaintiff pointed out he was rear-ended by defendant, the *Baltayani* court found defendant satisfied their burden demonstrating it was reasonably possible defendant would win based on the arbitrator's ruling for the defendant.

Here, Plaintiff's Complaint contains two causes action that are premised on the same factual allegations: negligence and premises liability.

The elements of a cause of action for negligence are: (1) defendant's legal duty of care toward plaintiff, (2) defendant's breach of duty (the negligent act or omission), (3) injury to plaintiff as a result of the breach (proximate or legal cause), and (4) damage to plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

Premises liability is a form of negligence wherein the owner of the premises is under a duty to exercise reasonable care in the management of such premises to avoid exposing persons to an unreasonable risk of harm. (Civ. Code § 1714, subd. (a); *Brooks*

v. Eugene Burger Management Corp. (1989) 215 Cal.App.3d 1611, 1619.) To establish premises liability, a plaintiff must prove (a) the defendant was the owner, occupier, or lessor of the premises, (b) the defendant was negligent in the use, maintenance, or management of the premises, and (c) that the negligence was the cause of injury, damage, loss, or harm to the plaintiff. (*Brooks, supra*, 215 Cal.App.3d at 1619.)

To prove an unsafe condition of property, plaintiff must prove: (1) a condition on the premises created an unreasonable risk of harm; (2) defendant knew, or in the exercise of reasonable care, should have known about it; and (3) defendant failed to repair the condition, protect against harm from the condition, or give adequate warning of the condition. (See *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206.)

Duty / Release / Waiver

A release is the relinquishment, concession, or giving up of a right, claim, or privilege by the person in whom it exists or to whom it accrues to the person against whom it might have been demanded or enforced. (*Commercial Ins. Co. of Newark, N.J. v. Copeland* (1967) 248 Cal.App.2d 561, 565 (“*Copeland*”).) A release may negate the duty element of a negligence action. (*Benedek v. PLC Santa Monica* (2004) 104 Cal.App.4th 1351, 1356.) A waiver is the intentional relinquishment of a known right after knowledge of the facts. (*Copeland, supra*, 248 Cal.App.2d at 565.) The legal effect of a release is also the relinquishment of rights such that it is a waiver. (*Ibid.*) In summary judgment, the defendant bears the burden of establishing the validity of a release. (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 554.)

In the present case, Defendant presents proof that Plaintiff signed a Release. Graciela Rodriguez (“Rodriguez”) testified that as the Enrollment Specialist at Corona-Norco Family YMCA, she was present in-person on March 8, 2024 when Plaintiff signed the enrollment documents, including the Release. (Rodriguez Decl., ¶¶2-5, Exh. A, “Release”.) A copy of the Release is attached to attorney Stephen A. Bonkowski’s declaration.

Rodriguez’s declaration lays sufficient foundation and authentication of the Release. “The custodian of a document need not have been present or employed when the document was created or signed to authenticate a document in a company’s files.” (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 758.) Any qualified witness knowledgeable about documents may lay foundation for business records. (See *Estate of O’Connor* (2017) 16 Cal.App.5th 159, 170.) There is “no strict requirement as to how a party authenticates a writing.” (*Ramos v. Westlake Services LLC* (2015) 242 Cal.App.4th 674, 684; Evid. Code, §1400 [authentication of a writing establishes the writing is what it purports to be].) Plaintiff makes no arguments attacking foundation or authentication by Rodriguez.

The Release states:

1. THE INDERSIGNED (sic) ON HIS OR HER BEHALF AND BEHALF OF SUCH CHILDREN, HEREBY RELEASES, WAIVES, DISCHARGES AND COVENANTS **NOT TO SUE** the YMCA, ...for any loss or damage, and any claim or demands therefore on account of injury to the person...of the undersigned...in, upon, or about the premises...
2. THE UNSIGNED HEREBY AGREES TO INDEMNIFY AND SAVE AND HOLD HARMLESS the releases and each of them from any loss, liability, damage, or cost they may, incur due to the presence of the undersigned...in, upon, or about the YMCA premises...whether caused by the negligence of the releases or otherwise.
3. THE **UNDERSIGNED HEREBY ASSUMES ALL RESPONSIBILITY FOR AND RISK OF BODILY INJURY**,...to the undersigned or such children due to negligence of releasees or otherwise while in, about or upon the premises of the YMCA or participating in any program affiliated with the YMCA.

(Release, pg. 1, emphasis added.)

Contract principles apply when interpreting a release and determination of such is a legal question. (*Ibid.*) To be effective, such a release must be clear, unambiguous, and explicit. (*Id.*) Like any agreement, a waiver or release agreement is subject to ordinary contract defenses. (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 562-564 [triable issue existed on fraud defense because defendant aware that customer who signed English-language release did not understand English].) So long as the express agreement to assume a risk does not violate public policy, it will be upheld and will constitute a complete bar to a negligence cause of action. (*Madison v. Superior Court* (1988) 203 Cal.App.3d 589[.]) “When parties intend for an express assumption of risk provision to exceed the inherent risk of the endeavor for which the release is signed, it is especially important for parties to clearly, explicitly and comprehensibly state the inclusion of noninherent risks.” (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, 1289.)

The Release is clear, unambiguous and explicit that the undersigned, Plaintiff, assumes all responsibility for bodily injury due to negligence while upon the YMCA premises. (Release, pg. 1.) Plaintiff’s incident thus triggers the application of the Release clause.

Accordingly, Defendant has established the possibility of prevailing at trial based upon the Release. Defendant has met its threshold showing of establishing the reasonable possibility of prevailing at trial under Code of Civil Procedure section 1030, subdivision (b).

The Court **GRANTS** Defendant’s motion for an order for undertaking for costs.

c. Costs

A request under Code of Civil Procedure section 1030 “shall be accompanied by an affidavit...shall set forth the nature and amount of costs and attorney’s fees the

defendant has incurred and expects to incur by the conclusion of the action or special proceedings.” (Code Civ. Proc., § 1030, subd. (b).)

Contrary to Plaintiff’s claims, attorney Bonkowski filed a declaration testifying Defendant has incurred \$11,231 in potentially recoverable costs to date: professional services fees of \$3,409.55 and allowable costs under Code of Civil Procedure section 1033.5, subdivision (a), to wit: filing fees (including MSJ), service, court report and deposition fees including video, witness fees, fees for court reporter at trial, jury fees, costs of models, photocopies, and expert fees and costs. (Bonkowski Decl., ¶6.) Bonkowski testifies the fees and costs total at least \$54,000 based on his best estimate. (*Id.* at ¶7.) This is sufficient.

d. Waiver – Code of Civil Procedure section 995.240

The only issue that remains is whether the bond should be waived or reduced based upon Plaintiff’s indigency or hardship.

The court may waive or significantly reduce the amount of an undertaking if the plaintiff establishes indigency because “‘access trumps comfort’.” (*Alshafie v. Lallande* (2009) 171 Cal.App.4th 421, 429.) This is so even if the defendant establishes grounds for an undertaking. (*Id.*) The trial court has the discretion to waive a provision for a bond in an action or proceeding and make such orders as may be appropriate as if the bond were given, if the court determines that the principal is unable to give the bond because: (1) the principal is indigent, and (2) unable to obtain sufficient sureties, whether personal or admitted surety insurers. (Code Civ. Proc., § 995.240.)

“[A] party formally seeking in forma pauperis status to be relieved of paying specified court fees and costs, which we believe could include a section 1030 undertaking as an additional court fee or cost...must complete a mandatory Judicial Council form (currently designated form FW-001) and provide the specified financial information¹. [Citations.] An applicant who is not receiving government benefits from certain public assistance and supplemental income programs or whose monthly income exceeds 125 percent of the current monthly federal poverty guidelines may nevertheless qualify to proceed in forma pauperis if his or her income is not sufficient to pay for court fees and costs as well as the common necessities of life for the applicant and the applicant’s family.” (*Alshafie, supra*, 174 Cal.App.4th at 434.)

“A plaintiff who has been granted in forma pauperis status has the right to a waiver of the undertaking. However, a plaintiff is not obligated to obtain in forma pauperis status to be entitled to a waiver of the section 1030 bond requirement. [Citations.] Under these circumstances, when the plaintiff has, for whatever reason, elected not to seek in forma pauperis status, there is no rigid standard for the requisite showing of indigency; and, as discussed, it ultimately remains within the court’s discretion to determine whether to grant a waiver. [Citations.] Certainly, however, a plaintiff seeking such a waiver would be well

¹ Judicial Council Form FW-011, “Request to Waive Court Fees,” requires an applicant to list gross monthly income, household income, all financial accounts, vehicles, personal property (jewelry, furniture, furs, stocks, bonds, etc.), and monthly deductions and expenses, including rent or house payments, food and household supplies, utilities, transportation expenses, etc.

advised to provide the detailed financial information requested on the mandatory Judicial Council form for obtaining in forma pauperis status.” (*Alshafie, supra*, 171 Cal.App.4th at 434.)

If the trial court has already granted a plaintiff leave to proceed in forma pauperis, the trial court acts arbitrarily and capriciously if it refuses to vacate or reduce the amount of the undertaking. (*Baltayan, supra*, 90 Cal.App.4th at 1435.) And even if a fee waiver has not been obtained, indigency depends on the litigant’s individual situation. (*Alshafie, supra*, 171 Cal.App.4th at 435, 435.) Out-of-state plaintiffs who earn a low income that may be entitled to relief from requirement of posting of undertaking; not only must courts exempt poor people entirely, but they may have to reduce the security bond required for middle-income litigants as well. (*Id.* at 46.)

Here, Plaintiff has failed to submit a declaration and Judicial Council Form outlining her hardship if she were forced to post an undertaking as requested. The Court **CONTINUES** the matter to afford Plaintiff the opportunity to demonstrate her financial inability to post an undertaking in the amount of \$54,000 and to explain the significant hardship she will face in the event such an undertaking is ordered. The continued hearing is set for September 17, 2026 at 8:30 am in Dept. 3 and Plaintiff is to file further papers regarding her ability to pay an undertaking which is to be filed no later than September 8, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2601385	WINTERS vs DOE DEFENDANT	MOTION TO BE RELIEVED AS COUNSEL FOR ALEXANDER WINTERS

Tentative Ruling: The motion to be relieved is granted. The order shall be effective upon filing a proof of service of the final order.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2602139	LOPEZ LOPEZ vs JAGUAR LAND ROVER NORTH AMERICA, LLC	DEMURRER ON COMPLAINT

Tentative Ruling:

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (CCP § 430.10(e).) A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

When considering demurrers, courts accept all well-pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (*SKF Farms v. Sup. Ct.* (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous

matters, states a cause of action.” (*Hahn, supra*, 147 Cal.App.4th at 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (*Simonyan v. Nationwide Ins. Co. of Am.* (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (*Rakestraw v. Cal. Physicians’ Serv.* (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (*Id.*)

1. JLRNA’s Demurrer

As an initial matter, JLRNA’s demurrer to the third cause of action should be overruled. In the Complaint, the third cause of action for negligent repair is expressly pleaded against the Dealership only. JLRNA is not named in that cause of action. A demurrer lies only to a cause of action asserted against the demurring party. Because the third cause of action for negligent repair is not asserted against JLRNA, there is no cause of action against it to which the demurrer can be directed. Accordingly, JLRNA’s demurrer to the third cause of action should be **OVERRULED**.

2. The Dealership’s Demurrer

The Dealership demurs to the third cause of action on two grounds. First, the Dealership argues that Plaintiffs fail to state facts sufficient to constitute a cause of action, because the Complaint does not allege specific facts showing what the Dealership did or failed to do, when the conduct occurred, or how the conduct caused injury. Second, it argues that the claim is barred by the economic loss doctrine because Plaintiffs seek only economic damages without alleging personal injury or damage to property other than the vehicle itself.

a. Pleading Sufficiency

A negligence claim requires duty, breach, causation, and damages. (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 526.) Civ. Code § 1714(a) embodies the general duty to use ordinary care. (Civ. Code § 1714.) Civ. Code § 1796.5 imposes a duty on automotive repair dealers to perform repair services in a good and workmanlike manner. (Civ. Code § 1796.5.) California follows a notice pleading standard, under which negligence may be pleaded generally. (*Berkley, supra*, 152 Cal.App.4th at 526–27.) At the pleading stage, allegations that a plaintiff repeatedly presented property for repair and that the defendant failed to exercise ordinary care are sufficient to put the defendant on notice of the claim. (*Cnty. of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 340.) A complaint must be read liberally and interpreted to achieve substantial justice. (*Coppinger v. Rawlins* (2015) 239 Cal.App.4th 608, 612.)

Paragraph 42 alleges that the Dealership owed Plaintiffs a duty to use ordinary care and skill in storage, preparation, and repair of the vehicle in accordance with industry standards. (Compl. ¶ 42.) That duty allegation is acceptable as a general common law duty allegation at the demurrer stage and is consistent with the statutory duty imposed by Civ. Code § 1796.5. Paragraph 43 alleges that the Dealership breached its duty by failing properly to store, prepare, and repair the vehicle in accordance with industry standards. (*Id.* at ¶ 43.)

Read in conjunction with the incorporated general allegations, the Complaint provides sufficient notice. Paragraph 40 incorporates prior allegations, including that defects manifested within the warranty period, Plaintiffs delivered the vehicle to an authorized JLRNA repair facility on multiple occasions, and JLRNA was unable to conform the vehicle to warranty after a reasonable number of repair attempts. (*Id.* at ¶¶ 17, 18, 19, 40.) These allegations, taken together, inform the Dealership that Plaintiffs allege repeated presentation of the vehicle for repair of warranty defects and that the Dealership failed to exercise ordinary care in performing those repairs. That is sufficient notice at the pleading stage. The Dealership is on notice of the nature of the claim, namely, that Plaintiffs brought the vehicle in for repair of specific defects during the warranty period, the Dealership undertook those repairs, and the repairs were performed negligently such that the defects were not corrected. The allegation that JLRNA was unable to conform the vehicle after a reasonable number of repair attempts by its authorized facility provides the causal link between the Dealership's conduct and the continuing defects.

Paragraph 44 alleges that the Dealership's negligent breach was a proximate cause of Plaintiffs' damages. (*Id.* at ¶ 44.) On demurrer, the Court accepts well-pleaded facts as true and draws all reasonable inferences in Plaintiffs' favor. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; *Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078.) The allegation that the Dealership negligently failed to repair the vehicle and that this failure proximately caused damages is sufficient at the pleading stage. The causal connection between negligent repair and continuing vehicle defects causing loss of use, diminished value, and other economic harm is apparent from the nature of the transaction.

Defendants' reliance on *Berkley* for a heightened pleading standard is misplaced in this context. (Defs.' Mot. 3:26–4:6.) *Berkley* does not impose a requirement that Plaintiffs plead evidentiary detail regarding specific repair visits, dates, or procedures at the pleading stage. (*Berkley, supra*, 152 Cal.App.4th at 526–27.) California's notice pleading standard requires only that the complaint provide the defendant with sufficient notice of the claim to enable preparation of a defense. (*Mahan v. Charles W. Chan Ins. Agency, Inc.* (2017) 14 Cal.App.5th 841, 848 fn. 3 [internal quotations omitted].) Here, the Dealership has adequate notice that Plaintiffs allege negligent performance of repair services during the warranty period resulting in continued defects and economic loss. More specific facts are matters for discovery, not demurrer.

Accordingly, the third cause of action states facts sufficient to constitute a cause of action for negligent repair. The demurrer on pleading sufficiency grounds is **OVERRULED**.

b. Economic Loss Doctrine

California's economic loss doctrine generally bars recovery in tort for negligent conduct causing only economic loss unless the defendant owed an independent duty in tort apart from contractual obligations. (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922.) The doctrine's rationale is protection of the parties' private ordering through contract. (*Id.* at 930.) The rule does not bar a tort claim when the duty sued upon is independent of contract. (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 990.) Under California law, there is no recovery in negligence for purely economic loss, meaning pecuniary harm unaccompanied by personal injury or physical injury to property other than the object of the transaction. (*S. Cal. Gas Co. v. Sup. Ct.* (2019) 7 Cal.5th 391, 398.)

An important exception applies where a special relationship gives rise to an independent tort duty. Under *Southern California Gas Leak Cases*, a defendant may owe a tort duty of care even in the absence of privity where a special relationship exists between the parties, particularly where the plaintiff was an intended beneficiary of a transaction and was harmed by the defendant's negligence in carrying it out. (*S. Cal. Gas Co.*, *supra*, 7 Cal.5th at 400.) Whether a special relationship exists is determined by the following six factors: (1) the extent to which the transaction was intended to affect the plaintiff, (2) the foreseeability of harm to the plaintiff, (3) the degree of certainty that the plaintiff suffered injury, (4) the closeness of the connection between the defendant's conduct and the injury suffered, (5) the moral blame attached to the defendant's conduct, and (6) the policy of preventing future harm. (*Id.*) The critical factor is foreseeability of the economic harm to the plaintiff from the defendant's negligent conduct.

Here, the Complaint invokes the special relationship exception. The Complaint alleges economic losses. The nonconformities allegedly impaired the use, value, or safety of the vehicle. (Compl. ¶ 17.) The prayer seeks general, special, and actual damages according to proof at trial, incidental and consequential damages according to proof at trial, and reimbursement of the purchase price. (*Id.* at p. 6.) The Complaint does not allege personal injury or physical damage to property other than the vehicle itself. The bare reference to impairment of the vehicle's safety describes the seriousness of the vehicle defect, not bodily injury or other property damage. Nevertheless, this case involves the performance of repair services, and the special relationship doctrine permits recovery of economic losses caused by negligent performance of such services where the six factors are satisfied.

At the pleading stage, applying the six factors, the Complaint satisfies the special relationship exception. (*S. Cal. Gas Leak Cases*, *supra*, 7 Cal.5th at 400.)

First, to the extent to which the transaction was intended to affect Plaintiffs, the Dealership's repair services were expressly intended to benefit Plaintiffs by correcting defects in their vehicle. The repair transaction was undertaken for Plaintiffs' direct benefit.

Second, as to the foreseeability of harm to Plaintiffs, this is the critical factor. It is highly foreseeable that negligent repair of a vehicle's safety and operational systems will cause economic harm to the vehicle owner. When a dealership undertakes to repair

defects and fails to do so with ordinary care, the foreseeable result is continued impairment of the vehicle's use and value, loss of the benefit of the warranty, and potential exposure to liability. The Complaint alleges that defects substantially impaired the use, value, or safety of the vehicle. (Compl. ¶ 17.) Harm to Plaintiffs and their property interests from negligent repair is plainly foreseeable.

Third, as to the degree of certainty that Plaintiffs suffered injury, the Complaint alleges that the Dealership's negligent repair was a proximate cause of Plaintiffs' damages. (*Id.* at ¶ 44.) Accepting well-pleaded facts as true, Plaintiffs suffered injury in the form of continued vehicle defects, loss of use, and diminished value.

Fourth, as to the closeness of the connection between the Dealership's conduct and the injury, the alleged causal connection is direct. Plaintiffs allege they delivered the vehicle to the Dealership for repair, that the Dealership negligently failed to repair the vehicle properly, and that as a result the vehicle remained defective, causing economic loss. (*Id.* at ¶¶ 41, 43, 44.) The connection between negligent repair and continued defects is close and direct.

Fifth, as to the moral blame attached to the Dealership's conduct, the Complaint alleges breach of the duty to exercise ordinary care and skill in repair services. (*Id.* at ¶¶ 42, 43.) Negligent performance of an undertaken repair obligation supports moral blame.

Sixth, as to the policy of preventing future harm, Civ. Code § 1796.5 codifies a public policy requiring repair dealers to perform services in a good and workmanlike manner. Recognizing a negligence remedy for breach of this duty serves the policy of preventing future harm from negligent automotive repairs.

Defendants rely on *Sheen* for the proposition that the economic loss doctrine bars Plaintiffs' negligent repair claim. (Defs.' Mot. 4:16–26.) *Sheen* is distinguishable because it involved a loan modification, where the Supreme Court found no special relationship between a borrower and lender. (*Sheen, supra*, 12 Cal.5th at 930.) By contrast, this case involves the performance of repair services on Plaintiffs' property, a transaction directly intended to benefit Plaintiffs, with foreseeable economic harm if performed negligently. The Dealership's undertaking to perform those repair services created a duty to perform them with ordinary care, and the economic losses from negligent repair are precisely the type of foreseeable harm the special relationship doctrine was designed to address.

Defendants further rely on *Erlich v. Menezes* (1999) 21 Cal.4th 543 and *Aas v. Superior Court* (2000) 24 Cal.4th 627, for the proposition that a claim for negligent performance of an implied duty to perform work in a good and workmanlike manner cannot support tort recovery for purely economic losses. (Defs.' Mot. 5:19–6:5.) Those cases are distinguishable. *Erlich* involved a homeowner-contractor relationship in which the parties' rights and duties were defined by contract, and *Aas* addressed construction defect claims against builders and subcontractors where no personal injury or damage to other property was alleged. Here, by contrast, Plaintiffs allege no contract with the Dealership. The warranty is between Plaintiffs and JLRNA, the manufacturer, not between Plaintiffs and the Dealership, which is a separate corporate entity. The absence

of a contractual relationship takes this case outside the *Erlich/Aas* framework and squarely within the special relationship doctrine of *Southern California Gas Leak Cases*.

Defendants also rely on *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, which reaffirmed *Sheen*'s general rule barring tort recovery for economic losses unaccompanied by physical or property damage. (Defs.' Mot. 4:18–5:12.) *Rattagan* does not alter the analysis. The Supreme Court in *Rattagan* addressed the independent duty framework in the context of fraudulent concealment claims and did not disturb the special relationship doctrine articulated in *Southern California Gas Leak Cases*. Because the special relationship exception applies on the allegations, *Rattagan*'s reaffirmation of *Sheen* does not bar the claim.

The Complaint adequately alleges an independent tort duty of ordinary care in the storage, preparation, and repair of the vehicle. (Compl. ¶ 42.) That duty is grounded in the common-law duty to exercise ordinary care under Civ. Code § 1714(a), and is reinforced by the statutory duty imposed on automotive repair dealers under Civ. Code § 1796.5 to perform repair services in a good and workmanlike manner. Together, these duties establish a tort duty independent of any contractual obligation.

At the pleading stage, the allegations plausibly satisfy the special relationship exception to the economic loss doctrine. Whether Plaintiffs can prove these allegations is a question for trial. On demurrer, the Complaint states facts sufficient to invoke the exception.

Accordingly, the economic loss doctrine does not support sustaining the demurrer at this stage. The demurrer on economic loss grounds is **OVERRULED**.